

Johnny English vs. AFP Legislation: Compliance Analysis

TLDR

Johnny English demonstrates systematic non-compliance with Australian Federal Police Act standards throughout the film, including unauthorised use of force, failure to follow lawful directions from superiors, and conducting operations without proper authorisation. His conduct would likely constitute multiple Category 3 conduct issues under Part V of the AFP Act, potentially warranting termination action. Supporting characters Bough and Lorna Campbell fare somewhat better, though both participate in unauthorised operations.

Full Analysis

Key Compliance Issues and Suggestions for Different Conduct

1. Use of Force and Arrest Powers

What happened: Johnny English knocks out Colonel Chevenix at the Tower of London, believing him to be an intruder. He also physically attacks guards at Sauvage's headquarters and participates in unauthorised detention of hospital staff.

Relevant Legislation:

Section 14B of the AFP Act states that a protective service officer (and by extension, members) must not use more force than is *"reasonable and necessary"* in making an arrest, and must not do an act likely to cause death or grievous bodily harm unless they believe on reasonable grounds it is necessary to protect life.

Section 14A requires that an arrest without warrant only be made where the officer *"believes on reasonable grounds"* that a person has just committed or is committing an offence.

What should have happened: Before striking Colonel Chevenix, Johnny English had no reasonable grounds to believe he was a criminal. A compliant officer would have identified the individual, issued a verbal challenge, and only used force if genuinely threatened. The attack on Chevenix — a senior Royal security official — constituted an unlawful use of force with no reasonable basis.

Similarly, rounding up hospital staff at gunpoint and declaring them "angels of death" with no evidentiary basis whatsoever represents a serious breach of proportionate force and lawful arrest requirements.

2. Failure to Comply with Lawful Directions from Superiors

What happened: Pegasus explicitly orders Johnny English to stay *"within 100 miles"* of Pascal Sauvage and to discount him from the investigation. Johnny English immediately proceeds to plan and execute a break-in of Sauvage's headquarters that same night.

Relevant Legislation:

Section 40 of the AFP Act is unambiguous:

> *"An AFP appointee must not disobey or fail to carry out a lawful direction, instruction or order, whether written or oral, given to him or her by the Commissioner [or] the AFP appointee under whose control, direction or supervision he or she performs his or her duties."*

Section 37 further establishes the Commissioner's general administration and control, and the chain of command flowing from that authority.

What should have happened: Johnny English should have either complied with Pegasus's direction or formally escalated his concerns through proper channels — for example, by presenting his evidence about Sauvage to Pegasus in a structured briefing and requesting a review of the directive. Instead, he unilaterally disregarded a direct order, which under section 40 constitutes a clear breach of AFP obligations. This conduct would almost certainly be classified as Category 3 conduct under section 40RP, given it involves serious dereliction of duty.

3. Conducting Unauthorised Operations

What happened: Johnny English requisitions a military transport plane, parachutes, neoprene suits and specialist equipment for an unsanctioned night operation against Sauvage's headquarters — all after being explicitly taken off the case.

Relevant Legislation:

Section 40H gives the Commissioner authority to assign duties and determine where those duties are to be performed. Once Johnny English's security clearance was cancelled and he was placed on leave, he had no lawful authority to conduct any operational activity whatsoever.

Section 40J deals with suspension from duties, and regulations made under it would prohibit a suspended AFP employee from exercising powers conferred on members.

Section 64AA reinforces this:

> **"If an AFP employee who is a member is suspended from duties under the regulations, the member must not, while the suspension is in force, exercise any power conferred on a member by this Act or any other law of the Commonwealth or of a Territory."**

What should have happened: Upon being suspended and having his security clearance cancelled, Johnny English should have immediately ceased all operational activity, returned any requisitioned equipment, and cooperated with any conduct review process. His continued operation constitutes a potential criminal offence under section 64AA, carrying a penalty of imprisonment for up to two years.

4. Secrecy Obligations

What happened: At the sushi restaurant, Johnny English openly identifies himself as being from MI7 to Lorna Campbell, a person of unknown affiliation at that time. He also announces his identity and operational intentions over an open microphone at Sauvage's chateau, broadcasting his entire tactical plan to the room.

Relevant Legislation:

Section 60A of the AFP Act imposes strict secrecy obligations on AFP appointees, prohibiting them from divulging **"prescribed information"** obtained in the course of their duties except for authorised purposes. Breaching this carries a penalty of imprisonment for up to two years.

What should have happened: Johnny English should have maintained his cover identity and avoided disclosing operational information to unverified individuals. The chateau microphone incident — where he literally narrated his tactical plan to the entire room including the target — represents perhaps the most catastrophic single breach of operational secrecy in the film.

5. Identification Requirements

What happened: Johnny English operates throughout the film without wearing any visible identification number, despite being in what amounts to a uniformed or semi-official capacity at the Tower of London.

Relevant Legislation:

Section 64A requires that:

> *"A member must, at all times when he or she is wearing his or her police uniform, wear his or her identification number clearly visible on the uniform."*

What should have happened: When operating in an official capacity at secured events, Johnny English should have ensured his identification number was clearly visible, as required by law.

6. Providing False Information / Fabricating Evidence

What happened: After knocking out Colonel Chevenix, Johnny English fabricates an entire fictional "assailant" — complete with orange frizzy hair, an eyepatch, banana-shaped scars on both cheeks, and two teeth — to cover his own mistake. He then confirms a clearly absurd computer-generated likeness as accurate.

Relevant Legislation:

Section 40YB of the AFP Act creates an offence for any person who:

> *"gives information under section 40SA that raises an AFP conduct or practices issue... knowing that the information is false in a material particular."*

More broadly, providing deliberately false information to investigators is inconsistent with the AFP professional standards framework under Part V, and would constitute at minimum Category 3 conduct under section 40RP as it involves a breach of the criminal law and serious dereliction of duty.

What should have happened: Johnny English should have immediately disclosed that he had mistakenly struck Colonel Chevenix, cooperated with any investigation, and allowed proper processes to determine accountability. Fabricating a suspect description to conceal his own error compounds the original misconduct significantly.

7. Bough's Conduct

What happened: Bough participates in the unauthorised break-in of Sauvage's headquarters, assists in the use of truth serum on a guard and Dieter Klein without lawful authority, and continues to assist Johnny English after his suspension.

Relevant Legislation:

Section 40 requires AFP appointees to follow lawful directions. However, Bough is in a difficult position — his direct supervisor (Johnny English) is directing him to act unlawfully, while his superior's superior (Pegasus) has suspended Johnny English. Under section 40, Bough's obligation runs to lawful directions, and a direction to assist in an

unauthorised operation would not be a lawful direction.

What should have happened: Bough should have refused to participate in the unauthorised operation and reported Johnny English's planned breach to Pegasus or another appropriate superior under the AFP conduct reporting framework in Division 2 of Part V.

8. Lorna Campbell's Conduct

What happened: Lorna Campbell, as an Interpol agent, operates in Australia and the UK without formally coordinating with AFP authorities. She uses physical force against Klaus Vendetta and participates in the unauthorised chateau operation.

Relevant Legislation:

Section 8(1)(bf) of the AFP Act contemplates the provision of police services for the purposes of "assisting, or cooperating with" foreign law enforcement agencies. However, this cooperation is institutional — it does not authorise foreign agents to independently conduct operations on British soil without AFP coordination.

What should have happened: Lorna Campbell should have formally coordinated with Pegasus or another senior AFP official to share her Interpol intelligence through proper channels, rather than operating independently and recruiting a suspended agent.

Character Compliance Scores

Character	Score	Reasoning
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Johnny English 1/10	Unauthorised operations, fabricating evidence, disobeying direct orders, unlawful use of force, secrecy breaches, operating while suspended, failure to identify himself properly. His conduct would likely warrant termination under sections 28 and 40K, and potentially criminal charges under section 64AA. The single point is awarded for ultimately achieving the mission objective.
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Bough 4/10	Participates in unauthorised operations and assists with unlawful activities, but generally acts in good faith, attempts to de-escalate situations (e.g., the cemetery scene), and shows better judgment than Johnny English throughout. He should have refused to assist after Johnny's suspension and reported the planned breach.
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Lorna Campbell 5/10	Operates with apparent legitimate Interpol authority and genuine investigative purpose, uses force proportionately, and ultimately acts to prevent a serious crime. However, she fails to properly coordinate with AFP authorities and recruits a suspended officer, which undermines the institutional framework the AFP Act is designed to protect.
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| **Pegasus** | **7/10** | Largely compliant — issues clear directions, follows proper reporting lines, and correctly suspends Johnny English when his conduct warrants it. Loses points for attending Sauvage's reception while the investigation is active (a potential conflict of interest), and for not ensuring adequate oversight of Johnny English's activities prior to suspension. |

| **Pascal Sauvage** | **0/10** | Not an AFP appointee, but included for completeness. Orchestrated the theft of the Crown Jewels, forced the Queen's abdication at gunpoint, and planned to convert England into a global prison. Comprehensively non-compliant with every conceivable legal and ethical standard. |